

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JUNE 2, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1A.

9:00 AM

P24-00395

ESTATE OF: ELEANOR LEWIS

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH AIEA FILED BY RAYMOND
PATTON ON 4/11/2025

-- See also Line # 4--

Need:

1. Appearances to report status, including settlement
2. Proof of Publication with will advisement. Petition requests admission of will and Proof of Publication filed 06/10/25 does not include language that will be admitted. PrC § 8120
3. Verified declaration by petitioner to add date of death of predeceased son Rene Pesqueira. LR 7.151(d)
4. Order for Probate Form DE-140

Note:

- a. Spanish Interpreter is requested.
- b. Will lodged 8-19-2025 is dated 02/08/2008. Petition requests admission of will dated 07/13/2019, which was lodged 01/22/2026.

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1B.

9:00 AM

P24-00395

ESTATE OF: ELEANOR LEWIS

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 3/1/2024 BY PATRICIA CARLSON.

Need:

1. Appearances to report status, including settlement
2. Proof of Publication. PrC § 8120
3. Verified declaration by petitioner to include names and dates of death of decedent's parents. LR 7.151(d)
4. Order for Probate Form DE-140

Notes:

- a. Objection filed by Raymond Patton 10/25/24.

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3. 9:00 AM	P24-00664 MATTER OF: MOORE LIVING TRUST DATED NOVEMBER 7, 2007 HEARING IN RE: COMPLIANCE HEARING ON: PETITION FOR DAMAGES, ATTORNEYS FEES AND COSTS FOR FAILURE TO PROVIDE REQUIRED NOTIFICATION, A REPORT OF THE TRUST AND ITS ADMINISTRATION; ACCOUNTING FILED ON 4/16/2024 BY CHERYL G. MOORE & OSC FOR IDA MOORE Need appearance by Ida Moore to show cause why she should not be sanctioned for failure to appear 9-2-2025, pursuant to 4-15-2025 minute order. Ida Moore was ordered to appear 4-15-2025 to report status of filing an accounting, pursuant to 12-3-2024 minute order. The Court will consider sanctions of up to \$1,500.00, pursuant to CCP § 177.5 for failure to appear 4-15-2025. Note: Per 12-3-2024 minute order, court ordered an accounting for the period 11-17-2011 through 10-1-2025 to be filed by 2-19-2025. None has been filed.
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4A.

9:00 AM

P24-01295

MATTER OF: THE LEWIS TRUST AGREEMENT

HEARING IN RE: PETITION FOR DETERMINATION OF BENEFICIARIES UNDER TRUST PURSUANT TO
PROBATE CODE SECTION 17200 AND SECTION 21380(A) FILED ON 8/1/2024 BY MILJANA MIJANOVIC

-- See also Line # 1--

Petitioner still must do the following:

1. Appear at the hearing to report status, including settlement
2. File a verified declaration to state the names and addresses of all persons entitled to notice
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, and file a Proof of Service with court.
4. Submit a proposed Order

Note: Spanish Interpreter is requested.

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4B. 9:00 AM	P24-01295 HEARING IN RE: PETITION FOR INSTRUCTIONS TO CONFIRM TRUSTEE FILED ON 8/2/24 BY RAYMOND PATTON	MATTER OF: THE LEWIS TRUST AGREEMENT
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Need:

1. Appearances to report status, including settlement
2. Proposed Order

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4C.

9:00 AM

P24-01295

MATTER OF: THE LEWIS TRUST AGREEMENT

HEARING IN RE: PETITION TO COMPEL INVENTORY AND ACCOUNTING; REMOVAL OF SUCCESSOR TRUSTEE AND APPT OF FIDUCIARY; FEES AND COSTS FILED ON 08/05/2024 BY PATRICIA T. CARLSON

Need:

1. Appearances to report status, including settlement
2. Verified declaration to include the names and current addresses of all persons entitled to notice
3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203
4. Proposed Order

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7. 9:00 AM	P24-01949 ESTATE OF: PEGGY JO MCCARTY HEARING IN RE: CONFIRMATION THAT FUNDS HAVE BEEN PLACED IN A BLOCKED ACCOUNT Need: 1. Appearances to report status of opening blocked account 2. File form MC-356, Acknowledgment of Order and Funds for Deposit in Blocked Account
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8. 9:00 AM	P25-00842 HEARING IN RE: REPORT ON WAIVER OF ACCOUNT FILED ON 01/22/2026 BY DALENE VANSYOC	ESTATE OF: DUANE COMSTOCK
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Petition Approved
Proposed Order Submitted
No Appearance Required

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9A. 9:00 AM	P25-01490 HEARING IN RE: DEMURRER TO PETITION FILED ON 02/19/26 BY NATALIE THOMPSON	MATTER OF: THE RUSSO FAMILY TRUST
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Need:

1. Appearances
2. Proof of service to all persons entitled to notice

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9B.

9:00 AM

P25-01490

MATTER OF: THE RUSSO FAMILY TRUST

HEARING IN RE: AMENDED PETITION TO INVALIDATE THE FIRST AND SECOND AMENDMENTS DUE TO UNDUE INFLUENCE AND LACK OF CAPACITY, ETC... FILED ON 03/10/2026 BY JANA COLLIN & NADA SIBLEY

Need:

1. Appearances
2. Verified declaration by petitioner to state relationships of all persons entitled to receive notice. LR 7.112
3. Proposed Order

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9C.

9:00 AM

P25-01490

MATTER OF: THE RUSSO FAMILY TRUST

HEARING IN RE: PETITION TO INVALIDATE THE FIRST AND SECOND AMENDMENTS DUE TO UNDUE INFLUENCE AND LACK OF CAPACITY, ETC... FILED ON 08/22/25 BY JANA COLLIN, NADA SIBLEY, AND JEFFREY SIBLEY

--superseded by line 9B--

Need:

1. Appearances
2. Verified declaration by petitioner to state current addresses and relationships of all persons entitled to receive notice. LR 7.112
3. Proof of mailing Judicial Council Form Notice of Hearing to Kenneth Thompson, Erin Lee Nelson and Daniel Thompson. PrC § 17203
4. Proposed Order

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12A. **P25-02064** **MATTER OF: MARGARET L SPESSARD REVOCABLE TRUST**
9:00 AM HEARING IN RE: MOTION TO COMPEL ACCOUNTING FILED BY RYAN SMITH ON 1-22-26

On the Court's own motion, this matter is CONTINUED to September 17, 2026, at 9:00 a.m. Briefing shall be per Code based on the continued hearing date.

When to proceed, petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to include a list of names and addresses of all persons entitled to notice
3. Have a copy of the Motion and Notice of Hearing mailed to all persons entitled to notice and file the completed Notice of Hearing
4. Submit a Proposed Order

Notes:

- a. Objection filed 04/13/26 by Amanda Sanders
- b. Response to Objections filed 04/24/26 by Ryan Smith

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12B.

9:00 AM

P25-02064

MATTER OF: MARGARET L SPESSARD REVOCABLE TRUST

HEARING IN RE: PETITION TO ENFORCE SETTLEMENT AGREEMENT, DETERMINE BREACH, COMPEL ACCOUNTING, ORDER TURNOVER OF ASSETS, AND SURCHARGE FOR DAMAGES FILED BY RYAN SMITH ON 11/17/2025

On the Court's own motion, this matter is CONTINUED to September 17, 2026, at 9:00 a.m. Briefing shall be per Code based on the continued hearing date.

When to proceed, petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to include a copy of all trust documents
3. File a verified declaration to include a copy of Settlement Agreement
4. File a verified declaration to include a list of names and addresses of all persons entitled to notice
5. Have a copy of the Petition and Notice of Hearing mailed to all persons entitled to notice and file the completed Notice of Hearing
6. Submit a Proposed Order

Notes:

- a. Objection filed 04/13/26 by Amanda Sanders
- b. Response to Objections filed 04/24/26 by Ryan Smith

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14.	P26-00100	MATTER OF: THE RAFAEL AND EVELIA HUERTA 2024 ILIT DATED FEBRUARY 26, 2024
9:00 AM	HEARING IN RE: PETITION FOR APPOINTMENT OF SUCCESSOR TRUSTEE (PROB CODE 15660) FILED BY RAFAEL HUERTA III ON 1-21-20	
	Need: Appearances	